

UGC (Institutions Deemed to be Universities) Regulations, 2019

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UGC (Institutions Deemed to be Universities) Regulations, 2019

UNION OF INDIA

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UGC (Institutions Deemed to be Universities) Regulations, 2019

Rule UGC-INSTITUTIONS-DEEMED-TO-BE-UNIVERSITIES-REGULATIONS-2019 of 2019

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UGC (Institutions Deemed to be Universities) Regulations, 2019

Published vide Notification No. F. 1-2/2018 (CPP-1/DU) dated 20.2.2019

Last Updated 21st February, 2019

Preamble

No. F. 1-2/2018 (CPP-I/DU). - To regulate, in an orderly manner, the process of declaration of institutions of academic excellence as Deemed to be Universities; and, further to maintain quality of higher education imparted by Institutions Deemed to be Universities consistent with the ideals of the concept of a University; the University Grants Commission, in exercise of powers conferred under clauses [f] & [g] of subsection [1] of Section 26 of the University Grants Commission Act, 1956, hereby, makes the following Regulations namely:-

1.

0.

Short Title, Application And Commencement.

- 1.1 These Regulations may be called the UGC (Institutions Deemed to be Universities) Regulations, 2019.

1.2

These Regulations shall apply to every institution seeking declaration as an Institution Deemed to be University, as also, albeit prospectively, to an institution which has been declared as an Institution Deemed to be University under Section 3 of the UGC Act, 1956.

1.3

They shall come into force with effect from the date of their notification in the Official Gazette.

1.4

These Regulations shall replace the UGC (Institutions Deemed to be Universities) Regulations, 2016.

2.0

Definitions.

- In these Regulations, unless the context otherwise requires:

2.01

"Act" means the University Grants Commission Act, 1956 (Act

3 of 1956

).

2.02

"Campus" means campus of the Institution Deemed to be University at its headquarters, wherein its major facilities, faculty, staff, students and its Academic Departments are located in a city /town / village in India; and includes all the campuses situated in the same territorial jurisdiction.

2.03

"Commission" means the University Grants Commission (UGC) constituted under the Act.

2.04

"Category" means the category of Institution Deemed to be University under the University Grants Commission (Categorization of Universities (only)for the Grant of Graded Autonomy) Regulations, 2018; and "Category I" and "Category II" shall be construed accordingly.

2.05

"Constituent Institution" means an institution operating under the administrative, academic and financial control of the sponsoring body and declared as such under the Notification.

2.06

"Constituent Unit" means unit(s) of the Institution existing on the date of submission of proposal to be declared as an Institution Deemed to be University.

2.07

"De-novo Institution" means an institution with the focus on teaching and research in unique and 'emerging areas of knowledge' so determined by the Commission after a due process,

2.08

"Emerging area of knowledge" in the context of De-Novo Institutions means such specialized/niche areas of knowledge which are considered desirable and useful and not usually imparted in the country.

2.09

"Expert Committee" means a Committee consisting of academics or other experts in the relevant fields of knowledge or practice to be nominated by Chairman of the Commission and include representatives of the Statutory bodies; and there may be as many Expert Committees as the Commission may determine for different purposes.

2.10

"Government", unless the context so specifies, means the Central Government in the Ministry of Human Resource Development allocated with business pertaining to higher education.

2.11

"Institution" means an institution of higher education engaged in teaching and research at the undergraduate, post-graduate or higher levels.

2.12

"Institution Deemed to be University" means an institution of higher education so declared, on the advice of the

Commission, by the Government under Section 3 of the Act.

2.13

"Necessary Infrastructure" means infrastructure as required under the norms of concerned Statutory Body/Commission.

2.14

"Off-Campus centre" means a centre of the Institution Deemed to be University, approved by the Government and situated beyond its Campus within India.

2.15

"Off-Shore Campus" means a centre of the Institution Deemed to be University approved by the Government and situated beyond its campus outside India.

2.16

"Processing Fee" means the charges that have to be paid by the applicant institution to the Commission along with the application for processing such application.

2.17

"Notification" means a notification issued by the Government in the Official Gazette declaring an institution of higher education, as an Institution Deemed to be University under Section 3 of the Act.

2.18

"Sponsoring body" means a body being a charitable or a not-for-profit Society or Trust or Company under Section 8 of Companies Act 2013 making an application for declaring an institution under its administrative, academic and financial control as a Deemed to be University.

2.19

"Statutory Body" means a body constituted under any law for the time being in force for determining or maintaining standards of quality in the relevant areas of higher education such as the All India Council for Technical Education (AICTE), Medical Council of India (MCI), Dental Council of India (DCI), National Council for Teacher Education (NCTE), Bar Council of India (BCI), Indian Nursing Council (INC), or any other such regulatory body established under an Act of Parliament.

2.20

"Teacher" means a member of the regular faculty at the levels of Professor, or Associate Professor or Assistant Professor, and includes adjunct faculty and faculty on a long-term contract of not less than three years.

2.21

"University" means a University defined in the University Grants Commission Act, 1956.

2.22

"NAAC" means National Assessment and Accreditation Council.

2.23

"NBA" means National Board of Accreditation.

2.24

"NIRF" means National Institutional Ranking Framework.

3.0

Objectives of an Institution Deemed to be University.

- The objectives for which an institution is declared by the Government as an Institution Deemed to be University shall be:

3.01

To provide for higher education leading to excellence and innovations in such branches of knowledge as may be deemed fit, primarily at undergraduate, at post-graduate and research degree levels, fully conforming to the concept of University as defined herein.

3.02

To engage in areas of specialization with proven ability to make distinctive contributions to the objectives of the higher education system in diverse disciplines.

3.03

To provide for high quality teaching and research recognized nationally and globally.

4.0

Eligibility Criteria for an Institution to be Declared as an Institution Deemed to be University.

- 4.01 An institution applying to be declared as an Institution Deemed to be University shall have to meet the following stipulations:-

- i. Has been in existence for not less than 20(twenty) years,
- ii. Has, at the time of application, valid accreditation by National Assessment and Accreditation Council (NAAC) with at least 3.26 CGPA for three consecutive cycles OR if in case of technical institution, two-third of the eligible technical programmes accredited by the National Board of Accreditation (NBA).
- iii. Should be at the time of application, figure among the top 50 (Fifty) ranks in any specific category or among the top 100 (Hundred) of overall ranking of National Institute Ranking Framework (NIRF).
- iv. Has demonstrated the characteristics of a university through multi-disciplinary courses,
- v. The annual per faculty publications in SCOPUS, Web of Science or peer-reviewed journals of acceptable quality as per the UGC Reference List of Quality Journals shall not be less than 2 (two).
- vi. The teacher student ratio shall not be less than 1:20 with a faculty strength of not less than 100 (Hundred) teachers and a minimum of 2,000 students on its rolls under the regular class-room mode, of which not less than one third being postgraduate/research students; and at least 5 Post Graduate Departments in existence for at least 3 years with research programmes.
- vii. Shall possess such academic and physical infrastructure as may be prescribed by the Commission and/or the relevant statutory bodies.
- viii. Shall have a built up area of not less than 30 sq. mts. per student which shall include academic (academic buildings, library, lecture hall, laboratories, etc.), administrative (hostels, faculty residences, health care), common and recreational facilities.

4.02

Corpus Fund: - (i) In the case of Institutions not maintained or financed by the Government a Corpus Fund of Rs.10 Crore for an existing institution and Rs.25 Crore for a de-novo institution, shall be created and maintained permanently in the name of the proposed Institution Deemed to be University by way of irrevocable Government Securities or other forms approved by the Commission.

(ii)

The interest accrued on the Corpus Fund shall be used only for the purpose of development of the Institution Deemed to be University.

4.03

Governance Structure - The Governance structure of the proposed Institution Deemed to be University shall be as per Clause 10.0 of these Regulations.

5.0

Procedure for Declaration of an Institution as an Institution Deemed to be a University.

- 5.01 An institution, fulfilling the minimum eligibility criteria as laid down in these Regulations for considering proposals for declaration as an Institution Deemed to be University, may apply 'online' to the Commission on its web portal developed for this purpose, and under intimation to the Government.

5.02

The following documents shall be uploaded in the online application, failing which, the online system shall not accept the application:

- i. Land ownership documents in the name of the Institution Deemed to be University or the sponsoring body.
- ii. Certificates regarding NAAC/NBA accreditation
- iii. Approval of the relevant statutory bodies for the professional courses which are currently being run.
- iv. Information along with evidence regarding the existing academic and physical infrastructure.
- v. Institution Development Plan consisting of the strategic vision for a 5-year period next, along with a rolling plan of its implementation covering academic, research, infrastructural, financial and governance plans.
- vi. Details of the corpus fund created, and details of the financial sustainability of the institution.
- vii. In case of institutions which are funded by the State/Central Government, a letter of commitment from the respective Government to continue financial support to the institution even after declaration as a Deemed to be University.
- viii. Copies of the documents uploaded on the Commission's web portal shall also be publicly disclosed on the website of the institution, duly certified by the Head of the institution. Any information found to be false after due verification shall be liable for criminal prosecution under the Indian Penal Code, 1860, as amended from time to time.

5.03

The Commission shall verify the documents submitted in the application with the concerned public authorities to ascertain their accuracy.

5.04

The Commission shall examine the application; with the help of an Expert Committee nominated to evaluate the Institution Development Plan to assess the existing academic and physical standards and submit its advice to the Government within sixty days from the date of online application.

5.05

Taking into consideration the advice of the Commission, the Government may, ordinarily within thirty days of receipt of the advice of the Commission, either issue a notification under Section 3 of the Act, declaring such institution as an Institution Deemed to be University for an initial period of five years; or, if the proposal is not agreed upon, convey its decision in writing to the Sponsoring body along with the reasons thereof. The decision of the Government shall be final.

5.06

In case of institutions declared as institutions Deemed to be universities as per section 3 of the Act, the University/ies which had hitherto granted affiliation to such institutions, shall transfer the credits and the transcripts of students who are enrolled and studying in the said institution, within thirty days of such declaration. The existing students may get the degree from the affiliating University or Deemed to be University as per preference of the student. The newly admitted students shall get degree of Deemed to be University.

6.0

Procedure for Declaration of an Institution as Deemed to be University under De-Novo Category.

- 6.04.1 Any Sponsoring body, with a proven track record in education, can submit an application online to the Commission under intimation to the Government, for setting up a new Institution Deemed to be University devoted to study and research in unique and emerging areas of knowledge not being pursued by existing institutions.

However, institutions of Central/State/UT Government applying under this category shall be given exemption from Clause 4.01 of these Regulations provided they address the strategic needs of the country and/or, engaged in preservation of cultural heritage.

6.04.2

Any Sponsoring body shall submit the application consisting of the following:

(a)

A Detailed Project Report (DPR) containing its fifteen year detailed Strategic Vision Plan and a five year rolling implementation plan viz. Academic Plan, Faculty Recruitment Plan, Students Admission Plan, Research Plan, Networking Plan, Infrastructure development Plan, Finance Plan, Administrative Plan, Governance Plan, etc, with clear annual milestones and action plans on how the new Institution Deemed to be University is to be set up, with identifiable outputs and outcomes;

(b)

Details of the land in possession for establishing the institution along with the title documents;

(c)

Details of the corpus fund created, and details of the financial sustainability of the institution;

(d)

Details of the sponsoring body, along with the details of the key academic and administrative personnel;

(e)

An undertaking to the effect that it shall abide by all provisions of these Regulations.

(f)

In case of institutions of Central/State/UT Government, a letter of commitment from the respective Government to continue financial support to the institution even after declaration as an Institution Deemed to be University.

6.04.3

The Commission shall refer the application for examination to an Expert Committee, and the Committee may direct the applicant institution to make a presentation to demonstrate whether or not the institution falls under de-novo category and whether the Detailed Project Report is in accordance with these Regulations. If necessary, the Committee may prefer to visit the applicant institution before submitting its report.

6.04.4

The Expert Committee shall submit its report to the Commission, within thirty days from the date of reference to it, by way of recommendation on whether or not the Letter of Intent ought to be issued, and in the event of recommending that a Letter of Intent be issued, whether the same shall be with or without any additional conditions along with reasons for imposing or not imposing such conditions.

6.04.5

The Commission shall forward its advice to the Government within thirty days from the date of receiving the report of the Expert Committee; and thereafter, the Government shall, having taken into consideration the advice of the Commission, usually within a further period of thirty days, either issue a Letter of Intent valid for a period of three years or reject the proposal stating reasons thereto.

6.04.6

The Sponsoring body shall submit a report of compliance in respect of the conditions mentioned in the Letter of Intent within a period of three years to the Government, which shall be forwarded to the Commission for its verification and advice and the Government shall take further steps following the procedure mentioned in Clause 5 of these Regulations.

7.0

Off-Campus Centre(S).

- 7.01 Institutions Deemed to be Universities in Category-I & Category-II or ranked from 1-50 in the "Universities" category of current NIRF ranking shall be permitted to start new Off-Campus Centre(s), following the procedure mentioned hereunder:

7.01.1

Institutions Deemed to be Universities in Category-I & Category-II or ranked from 1-50 in the "Universities" category of current NIRF ranking shall submit their application to the Government by way of an Affidavit in the prescribed proforma for approval to start an Off-Campus Centre or, for issuance of Letter of Intent for setting up an Off-Campus Centre, as the case may be.

7.01.2

The Government, after such preliminary scrutiny as it may deem fit, of the application containing details of existing or proposed infrastructure facilities, Courses/Programmes of study, Students intake, financing arrangements, shall forward to the application to the Commission for its advice. The Institutions applying for Off-Campus Centre(s), shall have to meet the following stipulations:

(i)

The teacher student ratio shall not be less than 1:20 with a faculty strength of not less than 25 (twenty five) teachers and a minimum of 500 students on its rolls under the regular class-room mode, of which not less than one third being postgraduate/research students; and at least 3 Post Graduate Departments with research programmes.

(ii)

Shall possess such academic and physical infrastructure as may be prescribed by the Commission and/or the relevant statutory bodies.

(iii)

Shall have a built up area of not less than 30 sq. mts. per student which shall include academic (academic buildings, library, lecture hall, laboratories, etc.), administrative (hostels, faculty residences, health care), common and recreational facilities.

7.01.3

In respect of Institutions Deemed to be Universities in Category -I or ranked from 1-50 in the "Universities" category of current NIRF ranking, there shall be no requirement of physical inspection. The Chairman of the Commission may constitute a Standing Committee to undertake examination of the information furnished by the Institution. The Chairman, on behalf of the Commission, shall forward the advice to the Government within thirty days on receipt of the application taking into consideration the observations of Standing Committee. Category-I Institutions Deemed to be Universities or ranked from 1-50 in the "Universities" category of current NIRF ranking can establish only three off-campus in a period of five years provided that not more than one campus can be established in one academic year. These off-campus shall be reviewed by the Commission after a period of five years from the date of Notification by the Government.

7.01.4

In respect of Institutions Deemed to be Universities in Category-II, the information provided with the application may be assessed and verified by an Expert Committee, constituted for the purpose by the Commission. The Chairman, on

behalf of the Commission, shall forward the advice to the Government within sixty days on receipt of the application taking into consideration the observations of Expert Committee. Category- II Institutions Deemed to be Universities can establish only two off campuses in a period of five years provided that not more than one campus can be established in one academic year. These off-campus shall be reviewed by the Commission after a period of five years from the date of Notification by the Government.

7.01.5

The Government shall, after taking into consideration the advice of the Commission, ordinarily within a further period of fifteen days from the date of receipt of such advice, either issue a notification for starting of off-campus centre(s) or, as the case may be, a Letter of Intent for setting up of new off- Campus centre(s) or reject the proposal stating the reasons thereto. The decision of the Government shall be final and binding.

7.01.6

If at any time, the information provided by the applicant Institute is found to be incorrect, the Government may withdraw the approval for starting the off-Campus centre; and in order to protect the interests of students enrolled at such centre, the Institution shall be asked to seek affiliation of the Off- Campus centre to the State/ Central University having territorial jurisdiction. Any information found to be false after due verification shall be liable for criminal prosecution under the Indian Penal Code, 1860, as amended from time to time.

Off-shore Campus:

7.02

Institutions Deemed to be Universities in Category-I shall be allowed to start new Off-Shore Campuses with the prior approval of the Ministry of Human Resource Development after receiving NOC from Ministry of External Affairs and Ministry of Home Affairs. Institutions Deemed to be Universities shall maintain the standards similar to their main campus and shall follow similar admission criteria, curriculum, examination system and evaluation system. All the information about off-shore campus shall be disclosed on the website of the Institution Deemed to be University.

7.03

Existing Off-Shore campus will continue to operate provided they have obtained due permissions.

8.0

Starting of New Course(S)/programme(S)/department(S)/ School(S)/ Faculty(IES) in the Campus or Approved off-Campus Centres of an Institution Deemed to be University.

- 8.01 Institutions Deemed to be universities in Category-I, Category-II or institutions from 1-50 in "university" category of NIRF ranking may start new Course(s) /Programme(s) /Department(s) / School(s) /Faculty(IES) in any field in their existing campus and approved off-Campus centre(s), with the prior approval of its Board of Management and, also where applicable, the relevant Statutory bodies. Such Institutions shall inform the Commission about starting of a new course/ programme/ department/ school/ centre in its existing main campus and approved off-campus within one month of the grant of approval by the Board of Management of the Deemed to be University and concerned Statutory bodies.

Provided that where the Institutions Deemed to be Universities in receipt of grants in aid or other funds for maintenance from the Central Government or the State Government or its Agencies, prior approval of the appropriate Government shall also be required.

8.02

Institutions Deemed to be universities, other than those referred to in clause 8.01 herein above, shall start new Course(s)/Programme(s) /Department(s) /School(s)/Faculty(IES) in allied field only in their existing Campus and approved off-Campus centre(s) only after obtaining permission from its Board of Management and, also where applicable, the relevant Statutory bodies. In case of starting of new Course(s)/ Programme(s)/ Department(s) / School(s) / Faculty(IES) in other than allied fields, prior approval of the Commission shall be required in addition to approval from the relevant statutory bodies. The Commission shall convey its decision either for approval or rejection as the case may be, within sixty days of receipt of the application from the institution.

9.0

Monitoring the Performance of Deemed to be Universities.

- 9.01 It shall be the responsibility of the Commission to monitor, annually, the performance and academic outcomes of all institutions Deemed to be universities, based on public disclosures on performance parameters, namely:

(a)

The graduate outcomes shall be such that a minimum of 50% of the graduating students secure access to

employment/self-employment or engage themselves in pursuit of higher education;

(b)

Promote linkage of the students with the society/industry such that at least two-third of the students engage in socially productive activities during their period of study in the institutions;

(c)

Train the students in essential professional skills such as team-work, communication skills, leadership skills, time-management skills, soft skills, etc; and inculcate a spirit of innovation/entrepreneurship and critical thinking among the students and promote avenues for display of these talents;

(d)

The teacher student ratio shall not be less than 1:20 with a faculty strength of not less than 100 (Hundred) teachers and a minimum of 2,000 students on its rolls under the regular class-room mode, and ensure that not more than 10% of the sanctioned posts of teachers is vacant at any point of time;

(e)

Conduct induction programmes for students;

(f)

Adopt Learning-outcome based curriculum framework(LOCF)and revise curriculum at regular intervals;

(g)

Use Information Communication Technology (ICT) based learning tools for effective teaching-learning processes;

(h)

Choice Based Credit System (CBCS), Academic flexibility for interdisciplinary learning

(i)

Examination Reforms to ensure that the student assessment is based on understanding of the concepts, and application thereof;

(j)

Ensure that at least half of the students passing out appear for examinations such as GATE/JAM/UGC-NET, and at least half of those appearing qualify;

(k)

Tracking of the student progress after completion of course;

(l)

Ensure that all new teachers, immediately after recruitment, are put through an induction course imparting pedagogical aspects;

(m)

All existing teachers shall be placed through an annual refresher training;

(n)

Compulsory participation in the NIRF ranking;

(o)

National level merit-based admission process.

(p)

Effective implementation of measures for quality improvement as per the quality mandate of UGC.

(q)

To ensure not to start or run any professional courses governed by specific Acts of parliament, except with the prior and specific approval of the authority constituted thereunder as well as in conformity with the Clause 8 of these Regulations.

(r)

To submit the type of courses those are being offered latest by 30th April every year. The details to be provided are - year, department, courses offered, whether the course is professional or general, approval of the statutory council, approval of the UGC, student intake, actual number of students enrolled, etc

(s)

To adhere to these regulations and other rules / regulations/ directions issued by the UGC and relevant statutory bodies from time to time.

(t)

Every year on completion of the admissions, the Deemed to be University shall upload all the data on its website.

9.02

The Commission shall decide on the physical verification of an Institution Deemed to be University, or constitute teams for such verification only on receipt of complaints against the accuracy and veracity of the information placed on the website of the institution in respect of the parameters referred to in clause 9.01.

10.0

System of Institutional Governance.

- 10.01 The proposed/existing Institution Deemed to be University shall be registered as a not-for-profit Society under the Societies Registration Act, 1860 or as a not-for-profit Trust under the Public Trust Act, or as a not-for-profit company under section 8 of the Companies Act, 2013.

Provided that a sponsoring body exclusively established for running educational institutions shall be exempted from registering as a separate not-for-profit Society /Trust /Company for the Deemed to be University. However, the sponsoring body shall categorically mention in its Registration Deed that the sponsoring body is exclusively for running educational activities and no other activities are being carried out or shall be carried out in future under it.

Provided further that if the sponsoring body of an existing Institution Deemed to be University does not have a Society /Trust /Company exclusively for running educational institutions, it shall form a new not for profit Society / Trust /Company for the Deemed to be University. In such cases, the sponsoring body shall be exempted from transferring of its moveable and immoveable assets to the newly created Society/Trust/Company, if such sponsoring body provides Notarized Affidavit to the effect that the entire moveable and immoveable assets allocated to the Institution Deemed to be University shall not be leased or otherwise disposed off without the prior permission of the Commission, and also that all expansion in the future shall be undertaken by the Society /Trust /Company exclusively established for Deemed to be University.

Provided also that the sponsoring body shall make available the infrastructure for operating the Institution Deemed to be University without any rental or other such charges.

10.02

All moveable and immoveable assets of the institutions shall be used only for the purpose of conducting academic activities, promotion of research and related administrative requirements of the Institution Deemed to be University.

10.03

The highest governing body of the Institution Deemed to be University shall be a Board of Management to be headed by the Vice Chancellor, and consisting of not less than 10 and not more than 15 members.

10.04

The Board of Management of the institution shall be independent of the sponsoring body with full autonomy to discharge its academic and administrative responsibilities.

10.05

The composition of Board of Management shall be as under: -

(i)

Vice-Chancellor.....Chairperson;

(ii)

Pro Vice-Chancellor (wherever applicable),

(iii)

Two Deans of Faculties of the Institution Deemed to be University, to be appointed by rotation based on inter-se seniority;

(iv)

Three eminent academics, who shall have functioned at the rank of Professor, to be appointed by the Chancellor from among persons unconnected with the Institution Deemed to be University as well as the Sponsoring body;

(v)

One representative of the Central Government or the State Government, as the case may be, where the Institution Deemed to be University is controlled and managed by such Government or is receiving grants directly or indirectly of a minimum of 50% of the average expenditure of three previous years, who shall be an eminent academic not below the rank of Professor - in respect of all other institutions Deemed to be universities, the UGC shall nominate a representative from a panel of names selected through a process approved by the Commission;

(vi)

Two teachers of the Institution Deemed to be University, one each from among the cadres of Professors and Associate Professors, to be appointed by rotation based on inter-se seniority;

(vii)

Nominees of the Sponsoring body, not exceeding Four in number;

(viii)

The Registrar, who shall be ex-officio Secretary of the Board of Management.

10.06

Tenure of the members of the Board of Management 10.06.1 All the members of the Board of Management, other than the ex-officio members and teachers, shall hold office for a term of three years from the date of first appointment and shall be eligible for reappointment.

10.06.2

Members of the Board of Management appointed from among teachers shall hold office for a period of two years or till such time as they cease to be teachers of the Institution Deemed to be University, whichever is earlier.

10.07

Powers and Limitations of the Board of Management 10.07.1 The Board of Management shall be the principal organ of management and the apex executive body of the Institution Deemed to be University, with powers to make rules of the Institution Deemed to be University.

10.07.2

The Board of Management shall be the final decision making body of the Institute in respect of every matter of the Institution Deemed to be University, including in the academic, administrative, personnel, financial, developmental matters.

10.07.3

The Board of Management shall not infringe upon the powers of the respective authorities provided under these Regulations; and where any authority has been given advisory /recommendatory powers, the Board of Management shall obtain advice /recommendations from such authority, before deciding on any matter before it.

10.08

Meetings of the Board of Management: i. The Board of Management shall meet at least four times a year, with not less than 15 days' notice being given before every meeting of the Board of Management.

ii. Attendance by more than one-half of the total number of members of Board of Management shall form the quorum for a meeting.

iii. In the absence of the Vice-Chancellor, the Pro-Vice Chancellor shall preside over the meeting; and where there be no Pro Vice Chancellor in an Institution Deemed to be University, a member chosen by the other members present, shall preside over the meeting.

iv. Every member of the Board of Management, including its Chairperson, shall have one vote and decisions at the meetings of the Board shall be taken by simple majority; and in case of a tie, the Chairperson shall have a casting vote.

v. Any business, which it may be necessary for the Board of Management to perform, may be carried out by circulation amongst its members.

vi. A copy of the proceedings of each meeting shall be furnished to the Chancellor of the Institution Deemed to be University as soon as maybe possible after the meeting.

10.09

Termination of Membership If a member other than the Vice- Chancellor, and those representing the teachers, accepts a full time appointment in the Institution Deemed to be University or does not attend three consecutive meetings of the Board of Management, without proper leave of absence, such member shall cease to be a member of the Board of Management.

10.10

Delegation of Powers of the Board of Management The Board of Management may, by a resolution, delegate to the Vice Chancellor or any other officer/faculty or to a Committee of officers/faculties of the Institution Deemed to be University, such powers as it may deem fit, subject to the condition that the action taken by the Vice Chancellor or the officer/faculty, or the Committee in the exercise of the powers so delegated, shall be reported at the next meeting of the Board of Management.

10.11

Other Authorities of the Institution Deemed to be University 10.11.1 Academic Council A. The Academic Council shall be the principal academic body of the Institution Deemed to be University and shall, subject to the provision of the Rules, have the control over, and be responsible for, the maintenance of standards of teaching, research and training, approval of syllabus, coordination of research activities, examinations and tests conducted by the Institution Deemed to be University; and shall exercise such powers and perform such other duties and functions as may be prescribed or conferred upon it by the Rules of the institution. The composition of the Academic Council shall be as under:

- i. Vice Chancellor Chairperson;
- ii. Pro Vice-Chancellor (wherever applicable);
- iii. Dean(s) of Faculties;
- iv. Heads of the Departments;
- v. Ten Professors, other than the Heads of the Departments, by rotation based on inter-se seniority;
- vi. Two Associate Professors from the Departments, other than the Heads of the Departments, by rotation based on inter-se seniority;
- vii. Two Assistant Professors from the Departments by rotation based on inter-se seniority;
- viii. Three persons from amongst educationists of repute or persons from any other field related to the activities of the Institution Deemed to be University who are not in the service of the Institution Deemed to be University, nominated by the Vice-Chancellor;
- ix. Three persons who are not teachers, co-opted by the Academic Council for their specialized knowledge
- x. The Registrar, who shall be ex officio the Secretary of the Academic Council

Note: The representation of different categories shall be only through rotation and not through election. The term of members, other than the ex-officio members, shall be two years. The Controller of Examination shall be the permanent invitee to the meetings of the Academic Council.

B. Powers and Functions of the Academic Council: The Academic Council shall have the following powers and duties, namely:-

- i. To consider matters of academic interest either on its own initiative or at the instance of the Board of Management or those proposed by the departments/ faculties and to take appropriate action thereon;
- ii. To exercise general supervision over all academic work of the institution Deemed to be University and to give direction regarding methods of instruction, evaluation, and improvements in academic standards;
- iii. To promote research within the Institution Deemed to be University, and to acquire reports on such researches from time to time;
- iv. To prescribe courses /programmes of study leading to degree and diploma of the Institution Deemed to be University;
- v. To make arrangements for the conduct of examinations in conformity with the Bye-Laws;
- vi. To appoint examiners, moderators, tabulators and such other personnel for different examinations;
- vii. To maintain proper standards of the examinations;
- viii. To recognize diplomas and degrees of universities and other Institutions and to determine equivalence with the diplomas and degrees of the institutions Deemed to be University;
- ix. To suggest measures for departmental co-ordination;
- x. To make recommendations to the Board of Management on:
 - (a) measures for improvement of standards of teaching research and training;
 - (b) institution of Fellowships, Travel Fellowships, Scholarships, Medals, Prizes etc.;
 - (c) to recommend to the Board of Management, the establishment or abolition of departments/centres; and
 - (d) To frame rules covering the academic functioning of the institution Deemed to be University, admissions, examinations, award of fellowships and studentships, free-ships, concessions, attendance, discipline, residence etc.
- xi. To appoint sub-committees to advise on such specific matters as may be referred to it by the Board of Management;
- xii. To consider the recommendations of the sub-committees and to take such action as the circumstances of each case may require;

- xiii. To take periodical review of the activities of the departments/centres and to take appropriate action with a view to maintaining and improving standards of instruction;
- xiv. To recommend institution of teaching posts (Professors, Associate Professors and Assistant Professors) to the Board of Management; and
- xv. To exercise such other powers, and to perform such other duties, as may be conferred or imposed upon it by the Rules.

C. Meeting of the Academic Council

- i. The Academic Council shall meet as often as may be necessary but not less than three times during an academic year with not less than 15 days' notice being given before every meeting of the Academic Council.
- ii. One third of the total number of members of the Academic Council shall constitute the quorum for the meeting of the Academic Council.
- iii. Each member, including its Chairman, shall have one vote and decisions at the meetings of the Academic Council shall be taken by simple majority; and in case of a tie, the Chairman shall have a casting vote.
- iv. Any business, which it may be necessary for the Academic Council to perform, except such as may be placed before its meeting, may be carried out by circulation of the resolution.

10.11.2

Planning & Monitoring Board: i. The Planning & Monitoring Board shall be the principal Planning Body of the institution Deemed to be University and shall be responsible for the monitoring of the development programmes of the Institution Deemed to be University.

- ii. The Vice-Chancellor and the Registrar shall be the Chairman and the Secretary, respectively, of the Planning & Monitoring Board, which may include seven members, internal to the Institution Deemed to be University, and three experts of eminence from outside the institution.
- iii. The constitution, powers and functions of the Planning & Monitoring Board shall be prescribed by the Rules.
- iv. The Planning & Monitoring Board shall have the right to advise the Board of Management and the Academic Council on any matter which it considers necessary for the fulfillment of the objectives of the Institution Deemed to be University.
- v. The recommendations of the Planning & Monitoring Board shall be placed before the Board of Management for consideration and approval.

10.11.3

Finance Committee A. The composition of Finance Committee shall be as under:

- i. Vice Chancellor - Chairperson;
- ii. Pro Vice-Chancellor (wherever applicable);
- iii. One person nominated by the Society/Trust/Company;
- iv. Two nominees of the Board of Management, one of whom shall be a member of the Board;
- v. One representative of Central Government not below the rank of Joint Secretary or his representative to the Government of India, in case the institution is controlled and managed by Central Government or is receiving grants more than or equal to 50% of its expenditure (based on average of previous three year account) from the Central Government directly or through its Agencies; and in all other institutions Deemed to be universities, the Commission shall nominate a representative from a panel of names selected through a process approved by the Commission;
- vi. One representative of the State Government, in case the Institution Deemed to be University is receiving grants from the State Government;
- vii. Finance Officer-Secretary ex officio

B. Tenure of members of the Finance Committee: All members of the Finance Committee other than ex-officio members shall hold office for a term of three years from the date of first appointment.

- C. Powers and Functions of the Finance Committee: i. To consider the annual accounts and financial estimates of the Institution Deemed to be University and to submit them to the Board of the Management for its approval;
- ii. To consider and recommend the annual budget and revised estimates to the Board of Management;
 - iii. To fix limits on the total recurring expenditure and the total non-recurring expenditure of each year based on the income and resources of the Institution Deemed to be University.

Note: No expenditure other than that provided in the budget shall be incurred by the Institution Deemed to be University without the approval of the Finance Committee.

D. Meetings of the Finance Committee: The Finance Committee shall meet at least twice a year to examine the

accounts and to scrutinize proposals for expenditure. Four members shall constitute the quorum for the meeting.

10.11.4

Board of Studies: There shall be one Board of Studies for each Department of the Institution Deemed to be University. The composition of Board of Studies of each faculty/ Department shall be as under:

- i. Dean of faculty/ Head of the Department - Chairperson;
- ii. All Professors of the faculty/ Department;
- iii. Two Associate Professors of the faculty/ Department by rotation based on inter-se seniority;
- iv. Two Assistant Professors of the faculty/Department by rotation based on inter-se seniority;
- v. Not more than 2 persons to be co-opted for their expert knowledge including those belonging to the profession or industry concerned.

Note: The powers and functions of the Board of Studies shall be prescribed by the Rules of the Institution Deemed to be University.

10.11.5

Selection Committee: i. There shall be one or more Selection Committees constituted, for making recommendations to the Board of Management for appointment to the post of Professors, Associate Professors, Assistant Professors and such other posts as may be prescribed, in accordance with the UGC Regulations (on Minimum Qualifications for Appointment of Teachers and Other Academic Staff in Universities and Colleges and Measures for the Maintenance of Standards in Higher Education), 2018, as amended from time to time.

ii. The meetings of the Selection Committees shall be convened, as and when necessary, by the Chairperson of each Selection Committee.

iii. Four members of the Selection Committee, of which at least two shall be experts, shall form the quorum.

10.11.6

Miscellaneous matters pertaining to different authorities of the Institution Deemed to be University i. If any question arises, as to whether any person has been duly nominated or appointed as, or is, entitled to be a member of any authority or any committee of the Institution Deemed to be University, the matter shall be referred to the Chancellor, whose decision thereon shall be final and binding.

ii. Any member, other than an ex-officio member of any authority, may resign by a letter addressed to the Registrar and the resignation shall take effect as soon as it is accepted by the Chancellor or the Chairperson of the Board of Management, as the case may be.

iii. Sudden vacancies among the members of any authority or any Committee of the Institution Deemed to be University shall be filled by the respective authority, as soon as may be, and within a period of six months.

iv. A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the Institution Deemed to be University:

(a)

if he/she is of unsound mind

(b)

if he/she is an un-discharged insolvent

(c)

if he/she has been convicted by a court of law for an offence involving moral turpitude.

(d)

if he/she has not been appointed as per the provisions of these Regulations.

Note: If any question arises as to whether a person is or has been subjected to any disqualifications mentioned above, the question shall be referred for decision to the Chancellor, whose decision shall be final and binding.

10.12

Officers of the Institution Deemed to be University:

10.12.1

Chancellor & Pro Chancellor i. The Institution Deemed to be University shall have a Chancellor who shall, when present, preside over the convocations of the Institution Deemed to be University but shall not be the Chief Executive Officer.

ii. The Chancellor, who shall be appointed by the sponsoring body, shall hold office for a period of 5 years from the date of first assuming office, and shall be eligible for reappointment for one more term.

iii. Where power is conferred upon the Chancellor to nominate persons to authorities, he/she shall, to the extent

necessary, nominate persons to represent the various interests for the furtherance of the objectives of the Institutions Deemed to be University.

iv. Pro-Chancellor: The Sponsoring body of the Institution Deemed to be University may also appoint a person as a Pro Chancellor, whose role would be limited to carrying out the tasks assigned to the Chancellor in these Regulations, when the latter is not available for carrying out the same. The Pro Chancellor, if so appointed, shall hold office for a period co-terminus with that of the Chancellor.

10.12.2

Vice-Chancellor A. The Vice-Chancellor shall be a whole time salaried officer of Institution Deemed to be University, and shall be appointed by the Chancellor from a panel of three names suggested by a Search-cum- Selection Committee.

B. The qualifications of the Vice-Chancellor shall be in accordance with the UGC Regulations (on Minimum Qualifications for Appointment of Teachers and Other Academic Staff in Universities and Colleges and Measures for the Maintenance of Standards in Higher Education), 2018, as amended from time to time.

C. The procedure/composition of Search-cum-Selection-Committee (SCSC) for selection of Vice- Chancellor shall be as under:

i. Where control of the management of an Institution Deemed to be University is with the Central Government or the State Government, the Vice-Chancellor shall be appointed in accordance with the procedure laid down by the Central Government or the State Government, as the case may be.

ii. Where the financial assistance, by way of grants in aid or otherwise, to the Institution Deemed to be University by the Central Government or by its Agencies is more than or equal to 50% of its expenditure (based on average of previous three year accounts) the composition of Search-cum-Selection-Committee shall be as under:

(a)

A nominee of Chancellor, who shall be a reputed academician as the Chairperson of the Committee;

(b)

A nominee of the Central Government, who shall be an academic of eminence; and,

(c)

An academician, with not less than 10 years service as Professor, nominated by the Board of Management

iii. Where the financial assistance, by way of grants in aid or otherwise, is less than 50% of its expenditure (based on average of previous three year accounts), the composition of Search cum-Selection Committee shall be as under:

(a)

A nominee of the Chancellor, who shall be a reputed academician as the Chairperson of the Committee

(b)

A nominee of the Chairman, University Grants Commission

(c)

An academician, with not less than 10 year service as Professor, nominated by the Board of Management

D. Tenure of Vice-Chancellor: i. The Vice-Chancellor shall hold office for a term of 5 years from the date of assuming office, and shall be eligible for reappointment for a second term; Provided that in no case shall the person appointed as Vice Chancellor hold office beyond the age of 70 years;

Provided further that notwithstanding the expiry of the period of 5 years, the Vice Chancellor may continue in office for not more than six months or till the successor is appointed and the latter assumes office, whichever, is earlier.

ii. Where the office of the Vice-Chancellor falls vacant due to death, resignation or otherwise and in case of his/her absence due to illness or any other cause, the Pro Vice-Chancellor, and in his/her absence, the Senior most Professor shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor is appointed, or the existing Vice-Chancellor resumes duties, as the case may be.

E. Powers of the Vice-Chancellor i. The Vice-Chancellor shall be the Principal Executive Officer of the Institution Deemed to be University and shall exercise general supervision and control over its affairs, and shall be mainly responsible for implementation of the decisions of all its authorities.

ii. The Vice-Chancellor shall be the Ex-officio Chairperson of the Board of Management, the Academic Council, the Finance Committee, the Planning & Monitoring Board and Selection Committees.

iii. The Vice-Chancellor shall have the power to convene, or cause to be convened, meeting of the various authorities of the Institution Deemed to be University.

iv. The Vice-Chancellor may, if he/ she is of the opinion that immediate action is called for on any matter, exercise any

power conferred upon any authority of the Institution Deemed to be University under these Regulations and Rules of the Institution Deemed to be University, and take such action, or proceed to take such action, and shall report to the authority concerned on the action taken by him/her on such matters.

Provided that if the relevant authority mentioned in Clause (ii) herein above is of the opinion that such action ought not to have been taken, it may refer the matter to the Chancellor whose decision thereon shall be final.

Provided further that if any person in the service of the Institution Deemed to be University is aggrieved by the action taken by the Vice-Chancellor under the said Clause, he/she shall have the right to appeal against such decision to the Board of Management within 30 days from the date on which such action is communicated to him/her and thereupon the Board of Management shall call the matter in a subsequent meeting and may confirm, modify or reverse the action taken by the Vice-Chancellor.

v. It shall be the duty of the Vice-Chancellor to ensure that these Regulations and Rules of the Institution Deemed to be University are duly observed and implemented; and, he/she shall have all the necessary powers in this regard.

vi. All powers relating to the proper maintenance and discipline of the Institution Deemed to be University shall be vested in the Vice-Chancellor.

vii. The Vice-Chancellor shall exercise all other powers as may be delegated to him/her by the Board of Management.

viii. The Vice-Chancellor shall have the power to re-delegate some of his/her powers to any of his/her subordinate officers with the concurrence and approval of the Board of Management.

ix. The Vice-Chancellor shall exercise such other powers and perform such other functions as may be prescribed by these Regulations, Rules and Bye-Laws of the Institution Deemed to be University.

E. Removal of Vice-Chancellor i. Where there are reasons to believe that the Vice-Chancellor of an Institution Deemed to be University does not possess the qualification as required under these Regulations and also under the UGC Regulations on Minimum Qualifications for Appointment of Teachers and Other Academic Staff in Universities and Colleges and Measures for the Maintenance of Standards in Higher Education, 2018, as amended from time to time or is not appointed as per the procedure stipulated in these Regulations or has committed any financial/administrative impropriety, the Chairman of Commission shall constitute a committee consisting of academic, administrative or financial experts to enquire into the matter.

ii. Where the report of the Enquiry Committee confirms the ineligibility, or procedural violations, or impropriety, as the case may be, the Commission shall direct the Chancellor to remove the Vice Chancellor after following the due process; Provided that, in respect of Vice Chancellors of institutions Deemed to be universities managed and controlled by the Central Government or State Government, the Commission shall convey its advice regarding removal of Vice-Chancellor to the relevant Ministry of the Central Government or the State Government, as the case may be.

10.12.3

Pro Vice-Chancellor i. The post of the Pro Vice-Chancellor may be created in an Institution Deemed to be University by the Board of Management; Provided that in respect of institutions managed and controlled by Central Government or State Government the prior approval of the appropriate Government shall be obtained before creating the post.

ii. The Pro Vice-Chancellor shall be appointed by the Board of Management on the recommendation of the Vice-Chancellor.

iii. The Pro Vice-Chancellor shall hold office co-terminus with the office of the Vice-Chancellor

iv. The Pro Vice-Chancellor shall have the powers and duties as prescribed by Rules of the Institution Deemed to be University.

10.12.4

Registrar i. The Registrar shall be a whole time salaried officer of the Institution Deemed to be University and shall be appointed by the Board of Management on the recommendations of the Selection Committee consisting of the following:-

(a)

Vice Chancellor - Chairperson;

(b)

One nominee of the Chancellor;

(c)

One nominee of the Board of Management; and,

(d)

One expert, not being an employee of the Institution Deemed to be University, to be appointed by the Board of Management.

ii. The emoluments and other terms and conditions of service of the Registrar shall be as prescribed by Rules of the Institution Deemed to be University.

iii. When the office of the Registrar is vacant or when the Registrar is on leave or absent due to any other reasons, the duties and functions of the Registrar shall be performed by such other person as the Vice Chancellor may appoint for the purpose.

iv. The Registrar shall be ex-officio Secretary of the Board of Management, the Academic Council and the Planning and Monitoring Board, but shall not be Deemed to be a member of any of these authorities.

v. The Registrar shall be directly responsible to the Vice-Chancellor and shall work under his direction.

vi. The following shall be the duties of the Registrar: -

(a)

To be the custodian of the records and the funds and such other property of the Institution Deemed to be University as the Board of Management may commit to his/her charge;

(b)

To conduct the official correspondence on behalf of the authorities of the institution Deemed to be university;

(c)

To issue notices convening meetings of the authorities of the Institution Deemed to be University and all Committees and sub-Committees appointed by any of these authorities;

(d)

To maintain the minutes of the meetings of all the authorities of the Institution Deemed to be University and of all the Committees and sub-Committees appointed by any of these authorities;

(e)

To make arrangements for the examinations conducted by the Institution Deemed to be University;

(f)

To represent the Institution Deemed to be University in suits or proceedings by or against the Institution Deemed to be University, sign powers of attorney and perform pleadings or depute his/her representatives for this purpose;

(g)

To enter into agreement, sign documents and authenticate records on behalf of the Institution Deemed to be University;

(h)

To make arrangements to safeguard and maintain the buildings, gardens, office, canteen, cars and other vehicles, laboratories, libraries, reading rooms, equipment and other properties of the Institution Deemed to be University;

(i)

To perform such other duties as may be specified in the Rules of the Institution Deemed to be University, or as may be assigned by the Board of management or the Vice-Chancellor from time to time.

10.12.5

Finance Officer i. The Finance Officer shall be a whole time salaried officer of the Institution Deemed to be University and shall be appointed by the Board of Management.

ii. The emoluments and other terms and conditions of service of the Finance Officer shall be as may be prescribed by Rules of the Institution Deemed to be University.

iii. The Finance Officer shall work under the direction of the Vice-Chancellor and shall be responsible to the Board of Management through the Vice-Chancellor.

iv. He/she shall be responsible for the preparation of annual budget estimates and statements of account for submission to the Finance Committee and the Board of Management.

v. He/she shall be responsible for the management of funds and investments of Institution Deemed to be University, subject to the control of Board of Management.

10.12.6

Controller of Examinations i. The Controller of Examinations shall be appointed by the Board of Management.

ii. The emoluments and other terms and conditions of service of the Controller of Examination shall be as may be prescribed by Rules of the Institution Deemed to be University.

iii. The Controller of Examinations shall ensure that all the specific directions of the Board of Management, Academic

Council and Vice-Chancellor in respect of examination and evaluation are complied with.

iv. The Controller of Examinations shall be a permanent invitee to the Academic Council.

10.12.7

Dean The Departments dealing with allied subjects could be grouped into faculties, and every faculty may be headed by a Dean.

10.12.8

Head of the Department i. There shall be a Head of the Department for each of the Departments in the Institution Deemed to be University who shall be appointed by the Vice-Chancellor from amongst the Professors of the Department.

Provided that if there is no Professor in the Department or there is only one Professor in the Department whose term as Head of the Department is ending, the Vice-Chancellor may appoint an Associate Professor as Head of the Department.

ii. The term of the Head of the Department shall normally be 3 years and he/ she shall be eligible for reappointment for one more term, but not for two consecutive terms.

iii. The powers and functions of the Head of the Department shall be prescribed by Rules of the Institution Deemed to be University.

10.12.9

Notwithstanding anything contained in these Regulations, the governance system and management structure of an Institution Deemed to be University managed and controlled by the Central Government or the State Government shall be in accordance with the decision of the appropriate Government.

11.0

Admissions and fees Structure.

- 11.01 No Institution Deemed to be University shall, for admission in respect of any course or programme of study conducted in such institution, accept payment towards admission fee and other fees and charges,-

(a) which is a capitation fee or donation in whatever nomenclature or form, either directly or indirectly

(b) other than such fee or charges for such admission, which has been declared by it in the prospectus for admission against any such seat, and on the website of the institution,

(c) more than the fee prescribed by the fee committee constituted as per fee regulations issued by the Commission.

(d) without a proper receipt in writing issued for such payment to the student admitted in such institution.

11.

02.

(1)

No Institution Deemed to be University shall charge any fee for an admission test other than an amount representing the reasonable cost incurred by it in conducting such test.

(2)

Institution Deemed to be University shall be abided by UGC notification regarding refund of fees and non retention of original certificate as amended time to time.

11.03

Admission of students to an Institution Deemed to be University, public or private, shall be strictly based on merit in the entrance exam prescribed by the appropriate statutory authority and in the manner specified in the prospectus, in case no entrance exam has been prescribed.

11.04

Every Institution Deemed to be University shall maintain the records of the entire process of selection of candidates, exhibit such records on its website, and preserve such records for a minimum period of five years.

11.05

Before the expiry of sixty days prior to the commencement of admission to any of its courses or programmes of study, every Institution Deemed to be University shall publish and upload on its website (in the form of an affidavit) its prospectus containing inter alia, the following:

- i. each component of the fee, deposits and other charges payable by the students admitted to such institution for pursuing a course or a programme of study, and the other terms and conditions of such payment;
- ii. the percentage of tuition fee and other charges refundable to a student admitted in such institution in case such student withdraws from such institution before or after completion of course or programme of study and the time within, and the manner in, which such refund shall be made to the student;
- iii. the number of seats approved in respect of each course or programme of study for the academic year for which admission is proposed to be made;
- iv. the educational qualifications specified by the relevant statutory authority/body, or by the institution, where no such qualifying standards have been specified by any statutory authority;
- v. the process of admission and selection of eligible candidates applying for such admission, including all relevant information in regard to the details of test or examination for selecting such candidates for admission to each course or programme of study and the amount of fee to be paid for the admission test;
- vi. all relevant instructions in regard to maintaining the discipline by students within or outside the campus of the institution, and, in particular, such discipline relating to prohibition of ragging of any student or students and the consequences thereof and for violating the provisions of any regulation in this behalf made under the University Grants Commission Act, 1956 or any other law for the time being in force.

11.06

No Institution Deemed to be University shall retain from the candidates seeking admission any original certificates of school leaving examinations, or degree or any other award; and shall, after due verification with the original certificates, retain only copies of such certificates self-attested by the candidates for its records.

12.0

Institution Deemed to be university open to All.

- 12.01 Admission and employment in an Institution Deemed to be University shall be open to all citizens of India regardless of religion, race, caste, sex, place of birth or residence.

12.02

All policies and procedures, in matters of admission and employment as applicable to the university level public and privately funded institutions respectively, shall apply to the appropriate category of institutions Deemed to be universities.

13.0

Institution Deemed to be University to be Unitary.

- Once an institution is declared as Institution Deemed to be University, it shall be unitary in nature, and shall not affiliate any other institution nor shall add any constituent institutions.

14.0

Reservation Policy.

- Institution Deemed to be University shall implement the policy on reservations in admissions and recruitment, in accordance with provisions of the Constitution of India and any Act of Parliament for the time being in force and disclose all such information on its website.

15.0

Distance Education.

- Institution Deemed to be Universities may offer courses in the Open, Distance Learning / On Line mode in accordance with the UGC (Open and Distance Learning) Regulations, 2017, and UGC (Online Courses or Programs) Regulations 2018 as amended from time to time.

Provided that Institution Deemed to be University, which are already offering programmes of study, with the approval of the Commission, through the Open and Distance Learning mode, shall be permitted to continue such programmes subject to further approval by the Commission.

16.0

Power to Conduct Enquiry and Consequences of violation of Regulations.

- 16.01 Where the Government or the Commission, as the case may be, receives information by way of a complaint or otherwise, that an Institution Deemed to be University has violated any of the provisions of these Regulations, it shall cause to conduct an enquiry into the facts of such information after issuing a notice to the said effect to the Institution Deemed to be University.

16.02

The Commission may also cause an inspection, to be made by persons of eminence and integrity; being experts in matters of academics, administration and finance; regarding academic outcomes or any matter connected with the administration or finances of the Institution Deemed to be University for the purpose of the enquiry.

16.03

Based on the enquiry or through regular inspections mentioned in these Regulations, if the Government or the Commission, as the case may be, is satisfied that these Regulations have been violated, the Institution Deemed to be University shall be subjected to such action as provided in these Regulations, after a reasonable opportunity has been given to the institution to present its case.

16.04

Where an Institution Deemed to be University is found to have violated the provision(s) of these Regulations, it may be subjected to one or more of the following action(s) :

A. Violations leading to issuance of unapproved degrees:

i. Punishment under Section 24 of the University Grants Commission, 1956.

ii. Barring from any expansion in terms of diversification to new Courses / Programmes of study / Department(s) and Off-Campus(es) / Constituent Institution(s) / Off-Shore Campuses, for a limited period.

iii. Reducing the intake capacity in student enrolment in a specific course(s) or in all courses, for a limited period or in perpetuity.

iv. Barring from admission of students for a limited period or in perpetuity in a specific course(s) or all courses.

v. Closure of the Courses / Programmes of study / Department(s) and Off-Campus(es) / Constituent Institution(s) / Off-Shore Campuses.

vi. Withdrawal of the notification of declaration as Institution Deemed to be University.

B. Violations leading to non-adherence of the Regulations:

i. Where any deficiencies in complying with the provisions of these Regulations come to the notice of the Commission, it shall issue a warning in that regard to the Institution Deemed to be University requiring rectification within a reasonable time; and, failure to take remedial action within the said period shall attract punishments provided under these Regulations. Provided that any punishment awarded to the institution Deemed to be university shall be without detriment to the interests of the students.

ii. Vice-Chancellor of the Institution Deemed to be University may be removed as per the procedure laid down in relevant Clause of these Regulations.

iii. Repeated violations of the provisions of these regulations shall attract action(s) mentioned in Clause 16.05A, herein above.

17.0

Consideration of Proposals under Previous Regulations.

- All proposals for seeking declaration as an Institution Deemed to be University or seeking approval for establishing off-Campus Centres or off-shore Campus(es) or for the inclusion of other institutions in the ambit of the Institution Deemed to be University, which are either pending or in process before the Commission or have been received by the Government prior to the date of notification of these Regulations, shall be governed by these Regulations.

Provided that if an applicant, in respect of a proposal prior to notification of these Regulations, desires so in writing that such application be processed under the UGC (Institutions Deemed to be Universities) Regulations, 2016, the Government or the Commission, as the case may be, shall proceed to do so after obtaining an undertaking in writing from the applicant, to become compliant with these Regulations within two years of its notification, failing which the Deemed university status shall be withdrawn by the Government, and the applicant shall have to apply afresh for such status under these Regulations.

18.0

Funds, Accounts, Audits and Annual Report.

- i. The books of accounts of the Institution Deemed to be University shall be maintained, managed and operated in the name of the Institution Deemed to be University and not in the name of the sponsoring body or any other; and, shall be kept in such form as may be laid down by the Board of Management and conform to the rules, if any, prescribed in this regard by the Commission.

ii. Funds shall not be diverted at any time from the accounts of the Institution Deemed to be University to any other

accounts, including to the accounts of the Sponsoring body.

iii. The Institution Deemed to be University shall get its books of accounts audited, annually and at such other frequency as shall be prescribed by the Commission, separately published and uploaded on the website of the Institution; and if such institution is funded by Central or State Government or through its agencies fully or partially, then the accounts of such Institution Deemed to be University shall be open for examination by the Controller and Auditor General of India; accounts of Institution Deemed to be University shall also, where required, be open for inspection by the Commission.

iv. The annual financial statements and accounts shall be audited by a qualified professional, being a Member or Fellow of the Institute of Chartered Accountants of India, to be appointed by the Institution Deemed to be University.

Provided that, the Commission may, on receipt of information in regard to financial impropriety or embezzlement or illegal diversion of funds from the accounts of the Institution Deemed to be University; or of fees being collected against the provision of the regulations, issue a notice directing the Institution Deemed to be University to show cause as to why an inspection, including a forensic audit, not be ordered in respect of the complaint, and after providing a reasonable opportunity to the respondent institution, the Commission may on being satisfied that there were sufficient grounds to proceed further, cause an inspection by a team of the Commission and also direct a forensic audit to be undertaken by a qualified Member or Fellow of the Institute of Chartered Accountants of India; the report of and the inspection team and the forensic audit report taken together shall form the basis for the Commission to take further action, as it may be Deemed fit, under these Regulations.

v. Annual Reports and the Audit Reports shall be submitted by the Institution Deemed to be University to the Commission within nine months of the closure of the accounting year.

19.0

Miscellaneous.

- i. The Institution Deemed to be University shall mention the name with location of campus/off campus /off-shore campus/ constituent unit/Constituent institution on the degree, diploma, certificate, or any other qualification awarded to students on its rolls.

ii. The Institution Deemed to be University shall, as soon as may be, after the completion of the academic programme, and in no case later than 180 days from the date of such completion, ensure that the degree, diploma, certificate, or any other qualification in respect of the programme of studies, is awarded and made available to students.

iii. No Institution Deemed to be University shall at any time enter into any franchise agreement or arrangement, either overtly or covertly, with any individual or organization for establishing, maintaining or operating the off-Campus/off-shore campus/constituent unit(s) / constituent institution/ course/ programme of study/ department/ school/ faculty of the Institution Deemed to be University.

iv. While every effort shall be made by the Government or the Commission, as the case may be, in respect of disposal of applications received from Sponsoring bodies or Institution Deemed to be University within the prescribed time limit, if any, such applications shall not be Deemed to have been disposed off owing merely to the fact that such time limit has been exceeded; the applicant shall, however, be at liberty to remind the Government or the Commission, as the case may be.

v. The income and property of the Institution Deemed to be University shall be utilized solely for promoting the objectives of the Institution Deemed to be University.

vi. The Commission shall have the powers to issue directions to an Institution Deemed to be University for implementation of any public policy of the Government or inspect of any law in force, including appropriate directions in case of any violation of any law or licy by the Institution Deemed to be University.

vii. All expenditure incurred on the processing of application for granting Deemed to be University status, starting of off-campus/off-shore campus/constituent institution, etc. including all inspections by the Expert Committee shall be borne by the Commission; and any expenditure incurred directly or indirectly by the Sponsoring body or the Institution Deemed to be University, as the case may be, on or in connection with the visit of any inspection team of the Commission shall be Deemed to be a violation of these Regulations and proceeded with accordingly.

viii. No portion of the income and property of the Institution Deemed to be University shall be paid or transferred directly or indirectly, by way of dividend, bonus or otherwise howsoever by way of profit to the persons who were at any time or are members of the Institution Deemed to be University or to any of them or any persons claiming through them, provided that nothing herein contained shall prevent the payment in good faith of remuneration to any member thereof or other person as consideration for any service rendered to the Institution Deemed to be University or for travelling or

other allowances and such other charges.

ix. The Government, in consultation with the Commission, shall have powers to impose such other condition(s), not inconsistent with these Regulations, in the Letter of Intent or Notification, and the same shall be binding on the Institution Deemed to be University.

x. Every Institution Deemed to be University shall, in order to comply with the relevant UGC norms, provide for the following, namely:

(a)

Anti Ragging Cell

(b)

Anti discrimination Cell

(c)

Gender Sensitization Cell

(d)

Grievance Redressal Cell

(e)

Internal Complaints Committee for prevention of Sexual Harassment

(f)

Barrier Free access to persons with disabilities to all its facilities

xii Where, an Institution Deemed to be University wishes to surrender its status of 'Institution Deemed to be University', it may do so with the prior permission of the Government; and similarly, withdrawal of any Constituent Unit(s) of the Institution Deemed to be University from the purview of an Institution Deemed to be University, shall require the Sponsoring body to take the prior permission of the Government.

Provided that such surrender or withdrawal, as the case may be, shall take effect only after the last batch of students on the rolls of the Institution Deemed to be University or its Constituent Unit(s), as the case may be, have been accorded opportunity to qualify for the completion of the programme of study and award of degree.

xi. In the event of conflict of opinion with regard to interpretation of these Regulations, the opinion of the Commission shall be final.

20.0

Legal Proceedings.

(1)

For the purpose of Section 6 of the Societies Registration Act, 1860, the person in whose name the Institution Deemed to be University may sue or be sued shall be the Registrar, who shall have the power to enter into agreements, sign documents and authenticate records on behalf of the Institution Deemed to be University, and shall exercise such powers and perform such duties, as may be prescribed by these Regulations.

(2)

No suit or legal proceedings shall lie against the Government, or the Commission, or the Institution Deemed to be University, or an Officer of the Institution Deemed to be University, or a member of the authority of the Institution Deemed to be University, in respect of anything done or purported or intended to be done in pursuance of any of these Regulations.

21.

Removal of Difficulty.

- UGC reserves the right to remove difficulty/ies in the course of implementation of these regulations in consultation with the Government of India, Ministry of Human Resource Development.

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